Unit 5

Federalism in India



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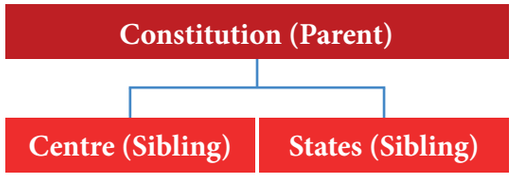
Learning Objectives

- To understand the meaning, evolution of the Concept of Federalism
- To evaluate the federal and unitary features of Indian Constitution and to fathom out how far our Constitution provides and promotes Federalism
- To examine the distribution of Center-State Powers in the Legislative, Executive and Financial domains in Indian Polity
- To know and evaluate the Cooperative Federalism provided in the Constitution
- To study the major issues and demands in the Centre-State relationship conspicuously found in our Political System
- To read and discus the recommendations of various commissions in the domain of Centre-State relations in India
- To examine and evaluate the inter-State river water dispute settlement mechanism provided in our Political System

5.1 Meaning of Federalism

Federalism refers to a political system that possess Constitutionally provided and guaranteed distribution of powers between a national government and several regional governments. The fundamental attribute of a federal Constitution is the Constitutionally created and protected State or regional governments. If regions in a country are distinct in terms of ethnicity, language, religion etc., the ideal form of government will be the federal system. Democratic federalism is the best instrument to ensure 'Unity in diversity'. The constituent States retain and safeguard their distinct linguistic, religious or cultural identity, without compromising the unity of the federated nation. The federal system is based on distribution of powers between the federal or central or Union Government and the constituent States. This distribution is determined by the Constitution, in clear written terms. Hence in any federal system, the Constitution becomes the supreme authority.

Meaning of Federalism



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